Non-Conforming Uses at Cement Plant e.g. "Lyons Quarry"	Non-Conforming Use: "Mining, Mineral Processing, Cement Plant, Cement Processing, Kin Dust Collector, Kiln Dust Bin"	Non-Conforming Uses at Cement Plant e.g. "Lyons Quarry"	Non-Conforming Use: "Mining, Mineral Processing, Cement Plant, Cement Processing, Kin Dust Collector, Kiln Dust Bin"	Conveyor - Dowe Flats to Cement Plant (94-81)	New Bridge and Access Road to Existing Cement Plant (94-81)	Dowe Flats Primary Crusher Constructed to Pre-Process Materials for Plant	Cement Kiln Dust (CKD) Disposal in Pit-C	Installation of New Energy Efficient LED Lights (But Much Brighter and More Light Pollution)	Enlosing Swede Ditch 4-Foot Steel Pipe Preparing for CKD Disposal	TR-9 & 10 - "Quality of C-Pit water has degraded sufficiently to raise concerns for potential waterfowl exposure - building and removal of nets"	TR6 - C-Pit Pumping System, Acid Tank and Neutralization System	[MULTIPLE] Commerical Remodels and Building Permits Following 2013 Flood and EPA Settlement	TR13 - Environmental Systems - Carbon Injection (ACI) System - Lime Injection System (LIS) - Selective Non-Catalytic Reduction (SNCR) a 35,000 gallon aboveground storage tank with secondary containment and fencing. - Associated Pump Building	Construction of a Compliance Well to Monitor CKD Impacts on Ground Water	Construction of a Truck Wash at the Plant Site?	Elimination of Dowe Flats, Change from Mining Operation to Custom Mill (DRMS Terms) and Trucking Source Material from 90 Miles Away
	Date / Year		**Date / Year**	**1997**	**1996?**	**1997?**	**1999**	**2015?**	**1998**	**2008**	**2006**	**2015**	**2006**	**2012**	**?**	**October 1, 2022**
Grounds for *Immediate* Termination of a Nonconforming Use:		**Grounds for *Immediate* Termination of a Nonconforming Use:**														
4-1003.C.1	**Right to continue a nonconforming use terminates immediately when the nonconforming use is enlarged, expanded, extended or altered in any of the following ways:**	**4-1003.C.1**	**Right to continue a nonconforming use terminates immediately when the nonconforming use is enlarged, expanded, extended or altered in any of the following ways:**	**Yes**	**Yes**	**Yes**	**Yes**	**Yes**	**Yes**	**Yes**	**Yes**	**Yes**	**Yes**	**Yes**	**Yes**	**Yes**
4-1003.C.1.a	Addition of a New Structure Containing or Accessory to the noncomforming use	**4-1003.C.1.a**	Addition of a New Structure Containing or Accessory to the noncomforming use	Yes - the conveyor encroaches all the way into the Plant site	Yes - adding a new bridge is a new accessory structure to mining, mineral processing and the cement processing	Yes - new accessory structure at the front end of the cement processing	No	No	Yes - a 4 foot steel pipe to protect the Swede Ditch from CKD Disposal is an accessory to the activities	Yes - nets over a large 7 acre mining pit constiue a new structure	Yes - pumps to the Plant and Acid Tanks seem like Accessory Structures	Yes	Yes -a number of new structures, including a new 35,000 gallon tank aboveground	Yes -a well is an accessory structure	Yes - a truck wash is an accessory structure	No
4-1003.C.1.b	Enlargement or alteration of a structure containing or accessory to the nonconforming use; alteration or improvement in excess of normal or routine maintenance of the structure	**4-1003.C.1.b**	Enlargement or alteration of a structure containing or accessory to the nonconforming use; alteration or improvement in excess of normal or routine maintenance of the structure	No	No	No	No	No	No	No	No	Yes	Yes	No	No	No
4-1003.C.1.c	Enlargement or alteration in the land area occupied by the noncomforming use, unless the basic nature of the use, at the time it became nonconforming, clearly indicated or contemplated such an increase or alteration	**4-1003.C.1.c**	Enlargement or alteration in the land area occupied by the noncomforming use, unless the basic nature of the use, at the time it became nonconforming, clearly indicated or contemplated such an increase or alteration	No	Maybe - a road seems like an alteration in the land	No	Yes - alteration of land for disposal of CKD, not extraction of materials, and a 20-year plan for 7-acres of disposal	No	No	No	No	No	No	No	No	No
4-1003.C.1.d	Any other enlargment or alteration of the nonconforming use which has the effect or threatened effect of creation a hazard or nuisance on or off the property, of adversely affecting the character of the neighborhood, or of intensifying the use of the land or its need for services	**4-1003.C.1.d**	Any other enlargment or alteration of the nonconforming use which has the effect or threatened effect of creation a hazard or nuisance on or off the property, of adversely affecting the character of the neighborhood, or of intensifying the use of the land or its need for services	Yes - the conveyor was acknowledged as adversely affecting the visual aesthetics of the neighborhood	Yes - a bridge and road increases need for services	Yes - a crusher can be seen from afar	Yes - CKD is a potentially hazardous material and has severe impacts if not handled properly. Burying CKD in the land also intensifies the use of the land.	Yes - neighbors have been complaining about the new lights installed from miles away	No	Yes - it's acknowledged as a hazard to waterfowl	Yes - Acid Tanks seems like a threatened effect of a hazard	Yes - Acid Tanks seems like a threatened effect of a hazard	Yes	Yes	Yes	Yes
4-1003.C.1.e	Removal or replacement of any structural member in a use for which the County is precluded from enforcing this Code specific to use on the basis of estoppel, laches, or waiver.	**4-1003.C.1.e**	Removal or replacement of any structural member in a use for which the County is precluded from enforcing this Code specific to use on the basis of estoppel, laches, or waiver.	No	No	No	No	No	No	No	No	No	No	No	No	Maybe
Exceptions for Termination of a Nonconforming Use from Enlargement/Alterations:		**Exceptions for Termination of a Nonconforming Use from Enlargement/Alterations:**														
4-1003.C.2	**An impermissible enlargement or alteration shall not include the following:**	**4-1003.C.2**	**An impermissible enlargement or alteration shall not include the following:**	Maybe	Maybe	No	Maybe	Maybe	Maybe	Maybe	Maybe	Maybe	Maybe	Maybe	No	No
4-1003.C.2.a	A change of ownership of the property	4-1003.C.2.a	A change of ownership of the property	No	No	No	No	No	No	No	No	No	No	No	No	No
4-1003.C.2.b	An alteration or expansion which the Building Official determines is necessary to rectify a hazardous health or safety situation or to comply with a public health or safety requirements of another governmental entity having lawful jurisdiction of the structure	4-1003.C.2.b	An alteration or expansion which the Building Official determines is necessary to rectify a hazardous health or safety situation or to comply with a public health or safety requirements of another governmental entity having lawful jurisdiction of the structure	Maybe BoCo claims this?	Maybe BoCo claims this?	No	Maybe CEMEX claims it was a DRMS requirement?	No	Maybe CEMEX Claims this was a Safety Requirment imposed by someone else	Maybe CEMEX Claims this was a Safety Requirment imposed by someone else	Maybe CEMEX Claims this was a Safety Requirment imposed by someone else	Maybe CEMEX Claims this was a Safety Requirment imposed by EPA or exemptions under Substantial Damage to nonconfomring	Maybe CEMEX will claim this is all part of the EPA settlement	Maybe CEMEX will claim this is all part of DRMS	No	No
4-1003.C.2.c	An extension of the nonforming use within the structure containing the use, provided that such extension is not accompanied by an alteration of the structgure falling within category (b), above;	4-1003.C.2.c	An extension of the nonforming use within the structure containing the use, provided that such extension is not accompanied by an alteration of the structgure falling within category (b), above;	No	No	No	No	No	No	No	No	No	No	No	No	No
4-1003.C.2.d	the addition of a solar energy sytem to a structure containing a nonconforming use provided it meets the specifications in Articles 4-514 or 4-516 or	4-1003.C.2.d	the addition of a solar energy sytem to a structure containing a nonconforming use provided it meets the specifications in Articles 4-514 or 4-516 or	No	No	No	No	No	No	No	No	No	No	No	No	No
4-1003.C.2.e	Any replacement or upgrading of outmoded or worn equipment or supplies, provided that such activity does not fall within category 4-1003.C.1.d., above	4-1003.C.2.e	Any replacement or upgrading of outmoded or worn equipment or supplies, provided that such activity does not fall within category 4-1003.C.1.d., above	No	No	No	No	Maybe CEMEX Claims this?	No	No	No	No	No	No	No	No